

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Purchased:

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RUBEN CRUZ,

SUMMONS

Jury Trial Demanded

Plaintiff,

Plaintiff designates Kings County
as the place of trial.

-against-

THE CITY OF NEW YORK and, P.O. RAFAEL BELARDO,
Shield No. 23912, Individually and in his Official Capacity, P.O.
MICHAEL MCCREADY, Shield No. 23365, Individually and in
his Official Capacity, P.O. DILSON ABREU, Shield No. 23409,
Individually and in his Official Capacity and P.O.'s "JOHN DOE"
#1-10, Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently unknown),

The basis of venue is:
Incident Occurrence

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 28, 2013

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

MICHAEL A. CARDOZO
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. RAFAEL BELARDO
Shield No. 23912
83rd Precinct

480 Knickerbocker Ave
Brooklyn, NY 11237

P.O. MICHAEL MCCREADY
Shield No. 23365
83rd Precinct
480 Knickerbocker Ave
Brooklyn, NY 11237

P.O. DILSON ABREU
Shield No. 23409
83rd Precinct
480 Knickerbocker Ave
Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RUBEN CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK and, P.O. RAFAEL
BELARDO, Shield No. 23912, Individually and in his
Official Capacity, P.O. MICHAEL MCCREADY, Shield
No. 23365, Individually and in his Official Capacity, P.O.
DILSON ABREU, Shield No. 23409, Individually and in
his Official Capacity and P.O.'s "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently
unknown),

Defendants.

-----X

Plaintiff RUBEN CRUZ, by his attorneys, COHEN & FITCH LLP, complaining of the
defendants, respectfully alleges as follows:

FACTS

1. Plaintiff RUBEN CRUZ is a Hispanic male and has been at all relevant times a
resident of the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police
Department, a duly authorized public authority and/or police department, authorized to perform
all functions of a police department as per the applicable sections of the New York State

COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

Incident Occurrence

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times hereinafter mentioned, the individually named defendants P.O. RAFAEL BELARDO, P.O. MICHAEL MCCREADY, P.O. DILSON ABREU and P.O.s "JOHN DOE" #1-#5 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about April 12, 2010, plaintiff RUBEN CRUZ was lawfully present outside of his apartment building in the vicinity of 43 Stockholm Street, in Kings County, State of New York.

9. Plaintiff was talking to some friends and family when he was approached by defendant officers.

10. The officers immediately placed claimant under arrest with his arms tightly behind his back.

11. At no time on April 12, 2010, did plaintiff commit a crime or violation of the law or behave unlawfully in any way.

12. At no time on April 12, 2010, did defendant officers possess probable cause to place plaintiff under arrest.

13. At no time on April 12, 2010, did defendant officers possess information that would lead a reasonable officer to believe probable cause existed to place plaintiff under arrest.

14. Thereafter, plaintiff was transported to a nearby precinct where he was brutally beaten by approximately eight (8) defendant officers.

15. At no time on April 12, 2010 did plaintiff behave in any matter that would justify the use of such excessive force.

16. Plaintiff was taken to Woodhull Hospital where he was treated for a broken nose and bruises all over his body among other things.

17. Plaintiff was charged with Criminal Possession of Marijuana, Unlawful Possession of Marijuana, Attempted Assault and Harassment.

18. At no time on April 12, 2010 did claimant possess marijuana, assault or harass anyone or behave unlawful in any way.

19. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the District Attorney's Office.

20. Plaintiff spent approximately twenty-eight (28) hours in police custody and approximately three years making court appearances before he was of the assault and harrasment charges on or about March 5, 2013.

21. As a result of defendant's unlawful conduct, plaintiff RUBEN CRUZ suffered a broken nose among other injuries.

22. As a result of the foregoing, plaintiff RUBEN CRUZ sustained, *inter alia*, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “22” with the same force and effect as if fully set forth herein.

25. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

26. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

27. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

28. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

29. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “29” with the same force and effect as if fully set forth herein.

31. The level of force employed by defendants was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

32. As a result of the foregoing, plaintiff RUBEN CRUZ sustained, inter alia, severe bodily injuries including, but not limited to, a broken nose, bruises and neck and back pain.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “32” with the same force and effect as if fully set forth herein.

34. Defendants misrepresented and falsified evidence before the District Attorney in relation to the assault and harassment charges.

35. Defendants did not make a complete and full statement of facts to the District Attorney in relation to the assault and harassment charges.

36. Defendants withheld exculpatory evidence from the District Attorney in relation to the assault and harassment charges.

37. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff in relation to the assault and harassment charges.

38. Defendants lacked probable cause to initiate criminal proceedings against plaintiff in relation to the assault and harassment charges.

39. Defendants acted with malice in initiating criminal proceedings against plaintiff. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff in relation to the assault and harassment charges.

40. Defendants lacked probable cause to continue criminal proceedings against plaintiff in relation to the assault and harassment charges.

41. Defendants acted with malice in continuing criminal proceedings against plaintiff in relation to the assault and harassment charges.

42. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings in relation to the assault and harassment charges.

43. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "44" as if the same were more fully set forth at length herein.

45. Defendants created false evidence against plaintiff.

46. Defendants forwarded false evidence and false information to prosecutors in the District Attorney's office.

47. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

48. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants

violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

49. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
March 28, 2013

BY: 

GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115
gcohen@cohenfitch.com
jfitch@cohenfitch.com

ATTORNEY'S VERIFICATION

GERALD COHEN, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff RUBEN CRUZ in the within entitled action

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information is his investigation and analysis of records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
April 2, 2013



GERALD COHEN

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RUBEN CRUZ,

Plaintiff,

-against-

THE CITY OF NEW YORK and, P.O. RAFAEL BELARDO, Shield No. 23912, Individually and in his Official Capacity, P.O. MICHAEL MCCREADY, Shield No. 23365, Individually and in his Official Capacity, P.O. DILSON ABREU, Shield No. 23409, Individually and in his Official Capacity and P.O.'s "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants

SUMMONS AND COMPLAINT

Attorneys for

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY
SUITE 1800

NEW YORK, NEW YORK 10279
(212) 374-9115

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

is hereby admitted

Dated:

.....
Attorneys(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of a*
NOTICE OF *entered in the office of the clerk of the within named Court on*
ENTRY

☐ *that an Order of which the within is a true copy will be presented for settlement to the Hon.*
NOTICE OF *one of the judges of the within name Court,*
SETTLEMENT at
on , at M.

Dated:

ATTORNEY FOR

COHEN & FITCH, LLP
Plaintiff
233 BROADWAY, SUITE 1800
NEW YORK, N.Y. 10279
(212) 374-9115